



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING COMMAND WASHINGTON
1314 HARWOOD STREET SE
WASHINGTON NAVY YARD DC 20374-5018

IN REPLY REFER TO

J&A No. N40080-24-J&A-006

**JUSTIFICATION AND APPROVAL (J&A)
FOR FIRST BRIDGE MODIFICATION SOLE SOURCE AWARD FOR CONTRACT
N40080-19-D-0306, REGIONAL 8(a) CUSTODIAL SERVICES,
NAVAL DISTRICT WASHINGTON (NDW)**

1) Contracting Activity.

Naval Facilities Engineering Systems Command (NAVFAC) Washington

2) Description of the Action Being Approved.

This is the first bridge request for this contract. This justification and approval (J&A) requests authorization to use other than full and open competition to extend the period of performance of contract N40080-19-D-0306 via a bridge contract modification for a three (3) month base period, seven (7) month option period, and a two (2) month option period to NJS Joint Venture, LLC, located at 31N 2nd Street, Suite 325 San Jose, CA 95113-1234.

3) Description of Supplies/Services.

This is a contract for custodial services for the Naval District Washington (NDW). The estimated period of performance for the requested bridge is 01 April 2025 through 31 March 2026. The estimated value of the requested bridge for the contract to include the base and two options, if exercised, is \$ [REDACTED] and calculated as follows.

BRIDGE DESCRIPTION	PERIOD OF PERFORMANCE	RECURRING WORK	NON-RECURRING WORK	TOTAL
3-Month Base Period	1 Apr 2025 - 30 Jun 2025	\$ [REDACTED]	\$ [REDACTED]	\$ [REDACTED]
7-Month Option	1 Jul 2025 - 31 Jan 2026	\$ [REDACTED]	\$ [REDACTED]	\$ [REDACTED]
2-Month Option	1 Feb 2026 - 31 Mar 2026	\$ [REDACTED]	\$ [REDACTED]	\$ [REDACTED]
TOTAL		\$ [REDACTED]	\$ [REDACTED]	\$ [REDACTED]

FY25 and FY26 O&MN funds from various customers will fund this action.

4) Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(2), Unusual and compelling urgency, as implemented by Federal Acquisition Regulation (FAR) 6.302-2.

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5) Rationale Justifying Use of Cited Statutory Authority.

The Regional Custodial Services contract provides janitorial services to facilities and installations in the National Capital Region. No other contract vehicle exists that could be used to meet the regional custodial requirements. The impact of not providing custodial services to these installations will severely impact operations at Navy Yard, Patuxent River, Indian Head, Carderock, Naval Observatory and potentially result in mission failure. Even a short gap in services could negatively impact life, health, safety, and mission. The work is scheduled to commence in April 2025.

The service under this requirement is being provided by NJS Joint Venture, an 8(a) small business concern. NJS has been supporting the custodial services contract since 2020. NJS has extensive knowledge of the required services. Its familiarity with custodial operations and procedures allows NJS to seamlessly continue performance. In addition, NJS does not require a transition phase because they are already performing the work and providing the services. Executing this contract action will avoid the risk associated with not having ample time to transition and start full performance. NJS possesses the manpower and skill levels to provide the required services without a learning curve or additional phase-in/mobilization requirements. Failure to award a bridge modification to NJS could severely compromise services and negatively impact life, health, and safety.

The need for the bridge arose around 10 October 2024 when acquisitions was first notified that Defense Health Agency (DHA) - Healthcare Environmental Cleaning (HEC) services will assume responsibility for specific Clinical and/or Hospital requirements in the existing contract at BUMED Facilities located at Indian Head and Dahlgren (PWD South Potomac). DHA requested for a 3-month bridge to provide for continued services until they are able to include them on their contract. There have been several revisions coordinated between technical and contracting teams on the Independent Government Cost Estimate (IGCE) and parts of the Performance Work Statement (PWS) that affects the Source Selection Plan and solicitation for this reprocurement. After months of follow-ups and verifications between technical and their point of contact with DHA, on December 16, 2024, DHA provided their final decision that they will transition off the current Regional 8a Custodial contract after the 3-month bridge period. This bridge is requested due to delay in finalizing the PWS, IGE and inventory, resulting from changing requirements.

Another factor contributing to the delay was the SPS SR19 upgrades (contract writing system) for Enterprise Resource Planning (ERP), (funding system) that occurred during a brown out period from 28 October 2024 until 21 November 2024. In the effort to avoid a contract period that ends during fourth quarter of 2025 and the first quarter of 2026, when many supported commands may not have their new fiscal year funding available, it was determined to be in the best interest of the Government to have the next option period end after the first quarter of 2025. Additionally, this provides ample time for the pre-solicitation period, solicitation, and the site visit, additional time be necessary.

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6) Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

This proposed action is being requested under FAR Part 6.302-2 Unusual and compelling urgency. There is insufficient time to synopsise this action, solicit offers, conduct source selection, negotiate, and award an interim, short-term contract to perform these services. The anticipated costs to competitively award a short-term bridge contract are believed to exceed any savings that would be generated through competition. The proposed J&A will be synopsized on the Government Wide Point of Entry (GPE) as a sole source contract modification to NJS Joint Venture, LLC., within 30 days after award, and upon approval of this J&A.

7) Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8) Actions to Remove Barriers to Future Competition.

The follow-on procurement will be solicited as a competitive small business set-aside under the 8(a) Business Development Program and is planned for award by 01 January 2026 with a start of service on 1 February 2026. No further bridge contracts are anticipated for this requirement. The bridge contract is being requested as an interim measure until the new contract is awarded.

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CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

KEATING.MICHAEL.WILLIAM.10293
25690
Signature

Digitally signed by
KEATING.MICHAEL.WILLIAM.1
029325690
Date: 2025.02.26 13:28:03
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Michael Keating
Name (Printed)

202-685-1259
Phone No.

Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

KARNS.BRIDGET.ASHLEY.1241619296

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Date: 2025.02.26 10:07:10 -05'00'

Signature

Bridget Karns
Name (Printed)

202-372-5932
Phone No.

Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

WAITE.JAMES.H.1230107722
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WAITE.JAMES.H.1230107722
Date: 2025.02.26 13:31:42 -05'00'

Signature

James Waite
Name (Printed)

202-802-4902
Phone No.

Date

ECH IV COMMANDING OFFICER APPROVAL

Upon the basis of the above justification, I hereby approve, as Commanding Officer, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(2).

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Signature

CAPT Omarr E. Tobias
Name (Printed)

Date